

Sh. Subhash Kumar vs Sh. Shiv Mohan Saini @ Sonu on 8 March, 2021

IN THE COURT OF SH. RAKESH KUMAR RAMPURI
ADDITIONAL SENIOR CIVIL JUDGE : JSCC : GUARDIAN
JUDGE, KARKARDOOMA COURTS (EAST)

C.S. No. 1170/18

Sh. Subhash Kumar,
S/o Sh. Abhay Kumar,
At 179A, Gali No. 11, Chander Vihar, Patparganj,
Delhi-110092

.....Plaintiff.

VERSUS

Sh. Shiv Mohan Saini @ Sonu,
S/o Sh. Murli Lal Saini,
R/o H. No. A-207, Chander Vihar,
Mandawali, Delhi-110092,

....Defendant.

Date of Institution	:	01.12.2018
Date of reserving of Judgment	:	18.02.2021
Date of Order	:	08.03.2021

SUIT FOR RECOVERY OF THE AMOUNT OF Rs. 25,000/-
ALONGWITH PENDELITE & FUTURE INTEREST.

JUDGMENT

1. The plaintiff has filed the present suit against the defendant wherein he sought recovery of Rs. 25,000/- alongwith pendente lite and future interest as well as the litigation cost. The plaintiff has pleaded in his plaint C.S. No. 1170/18 Page 7 to 7 that he was an advocate by profession and engaged in the said profession for last many years. He further pleaded that on 10.07.2018, defendant approached the plaintiff to file Mutual consent petition under Section 13 (B) (2) of HMA and after discussion with the plaintiff, the plaintiff agreed to file the same and the profession fee was fixed as Rs. 30,000/- and on the same date, defendant paid Rs. 5,000/- to the plaintiff as part payment. It is case of plaintiff that defendant assured the plaintiff that he will pay the remaining fee of Rs. 25,000/- on the day of hearing of second motion petition. It is also case of the plaintiff that he drafted and filed the Mutual consent petition under Section 13 (B) (2) of HMA 1955 vide HMA No. 801/2018 titled as Smt. Barkha Saini @ Barkha Sainy V/s. Shiv Mohan Saini @ Sonu, which was allowed by Hon'ble Principal Judge, Family Court, District Shahdara on 14.08.2019. It is further case of plaintiff that in said order dated 14.08.2018, the appearance of plaintiff was marked by the Hon'ble Court, which shows that the plaintiff is the counsel for the defendant in said divorce petition

and on 14.08.2018, after that court hearing, the plaintiff demanded balance fee of Rs. 25,000/□ from defendant but defendant requested him to grant one month time for paying the same as he was facing financial problem as he had to make the settlement amount to his wife.

1.1 The plaintiff had approached the defendant on various occasions for payment of balance professional fee but defendant avoided on one pretext or other. Thereafter, on 13.10.2018, the mother and sister of defendant came to the house of plaintiff and they assured that the defendant will pay the balance amount of Rs. 25,000/□ on 16.10.2018 but the defendant again failed to make the said payment to the plaintiff.

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1.2 It is further case of plaintiff that on 22.10.2018, in the evening, the

defendant, his mother and sister came to the house of the plaintiff and asked the plaintiff to provide the documents of above said case and at that time the plaintiff also called one commonly known person namely Trilok Chand Sunariya. When the plaintiff demanded his balance fee amount then they picked quarrel with the plaintiff and said Trilok Chand Sunariya and also they have threatened the plaintiff to face dire consequences.

1.3 It is further contended by the plaintiff that after repeated requests and demands, defendant failed to make the payment of Rs. 25,000/□ to him. The plaintiff has served a legal demand notice dated 06.10.2018 to the defendant but despite being served of said legal notice, defendant failed to make the due payment to him. Finally, plaintiff has instituted the present suit for recovery for an amount of Rs. 25,000/□ against defendant on 30.11.2018.

2. On the other hand, the defendant appears and also filed WS and on the basis of pleadings, following issues were framed vide order dated 20.03.2019.

(i) Whether the plaintiff is entitled for recovery of Rs. 25,000/□ alongwith pendente□ lite and future interest as prayed for? OPP

(ii) Relief, if any.

3. To prove his case, plaintiff has examined himself as PW1 and Sh. Trilok Chand Sunariya as PW2. The plaintiff Subhash Kumar, has filed his evidence by way of affidavit Ex.PW1/A and he also relied upon following documents i.e. Copy of complaint dated 23.10.2018 is Mark A (de□ exhibited as Ex.PW1/1), Legal notice dated 06.10.2018, is Ex.PW1/2, Postal receipt C.S. No. 1170/18 Page 7 to 7 dated 06.10.2018 is Ex.PW1/3, retuned envelop is Ex.PW1/4, Copy of mobile/whats app messages is Mark□ B (de□ exhibited as Ex. PW1/5), Tracking report is Mark□ C (de□ exhibited as Ex.PW1/6), Copy of aadhar card is Ex.PW1/7 (OSR), Certified copy of judgment, order and joint statement of Barkha Saini @ Barkha Sainy, Shiv Mohan Saini @ Sonu and decree of divorce (Ex.PW1/8).

During his cross□ examination, the plaintiff (PW1) stated that he knew the defendant since one year and he was living near the house of defendant, who was running a tea stall. Plaintiff denied the suggestion of the defendant as to he demanded Rs. 10,000/□ from the defendant as professional fee

and at the time of signing the vakalatnama, in mutual consent petition, the defendant had paid Rs. 10,000/- as professional fees to him. Plaintiff further stated that there is no written contract between him and defendant regarding his professional fees. Plaintiff further denied the suggestion of defendant that defendant has paid Rs. 10,000/- which was full and final settlement regarding his fees.

4. The plaintiff has also examined Sh. Trilok Chand Sunariya (PW2), who tender his evidence by way of affidavit Ex.PW2/A, wherein he had stated that on 22.10.2018 the plaintiff has demanded his balance fee from defendant then the defendant and his mother and sister picked quarrel with the plaintiff and himself (PW2). During cross-examination PW2 had stated that he was retired from private job in the year 2005 and he knew the defendant for last 8-10 years. PW2 further stated that plaintiff and defendant are also known to each other as both are residing in the same locality. It further stated that defendant and plaintiff may have met each other without C.S. No. 1170/18 Page 7 to 7 being introduced by him. PW2 deposed that in his presence, defendant had paid Rs. 5000/- to the plaintiff. However, PW2 denied the suggestion of the defendant as to he had paid Rs. 10,000/- to the plaintiff in his presence or that he had taken Rs. 5000/- as commission from the defendant. He also denied the suggestion of defendant as to plaintiff and defendant had entered into a written agreement for payment of legal fees. PW2 further stated that no cheque was given by the defendant for the remaining amount of Rs. 25,000/- PW2 admitted that it was an oral agreement and at the time of mutual consent case in the court and he was not present there. PW2 further stated that on 22.10.2018, the mother and sister of defendant had gone to the plaintiff's house to demand certified copies of decree and judgement of mutual consent under Section 13B (2) of Hindu Marriage Act and firstly, plaintiff demanded remaining fees and then he promised to give the all said documents. PW2 further stated that he reached the plaintiff house after call by plaintiff at the time of presence of sister and mother of defendant. PW2 denied the suggestion that he was deposing as a witness for commission of Rs. 5000/-

5. Keeping in view the aforesaid testimony of plaintiff and his witness and supportive documents, it is clear that the plaintiff has worked as an advocate for defendant in some mutual consent petition under Section 13(B) (2) of HMA, 1955, for consideration of professional fees. From the abovementioned family courts order dated 14.08.2018, it is further clear that appropriate decree of divorce by mutual consent between defendant and his wife has been passed on their consent petition under Section 13B (2) HMA. Defendant himself suggested during cross-examination of plaintiff that he worked as advocate in said mutual consent of the defendant for professional C.S. No. 1170/18 Page 7 to 7 fees of Rs. 10,000/- However, defendant also claimed that he had paid said professional fees of Rs. 10,000/- to the plaintiff as full and final settlement at the time of signing of Vakalatnama. The plaintiff has refuted the said suggestion and claim of defendant but he admitted that there was no written contract between him and defendant regarding his professional fees. Here, there may be an oral contract between advocate and his client regarding his professional fees and it cannot be said that the plaintiff could not have charged the sought amount of Rs. 30,000/- as professional fees on his defendant client. It is also noticeable that the defendant has not suggested that the sought professional fees of Rs. 30,000/- is unreasonable and same cannot be recovered from the court. Further, defendant has not filed any documentary proof regarding alleged payment of the professional fees to the plaintiff or any alleged commission to the PW2. Furthermore,

defendant has not lead any evidence for proving his version of defence despite various opportunities afforded to him by the court for the same. The defendant opted such course of action on his own peril.

6. In view of said discussions, this court is of considered view that the plaintiff is entitled to decree for sum of Rs. 25,000/- with pendente lite interest @ 9% p.a. and future interest @ 6% till realization of decretal amount. In given situation, the court does not deem fit to pass any separate order for the cost. The decree of pendente lite interest will be subject to filing of court fees by the plaintiff. Thus, the issue no. 1 is decided in favour of plaintiff and against the defendant.

7. Decree sheet be prepared accordingly. File be consigned to record room after due compliance.

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Rakesh	by Rakesh Kumar
Kumar	Rampuri
	Date: 2021.03.08
Rampuri	16:31:13 +0530

Pronounced in the open
court on 08.03.2021

(Rakesh Kumar Rampuri)
JSCC-cum-ASCJ/Guardian Judge,
East District, Karkardooma Courts, Delhi.

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